

		Therefore, the Basso Defendants have failed to satisfy their initial burden of proof as well as their ultimate burden of persuasion that they are entitled to summary judgment based on the applicable statutes of limitations. Plaintiffs to give notice of this ruling.
114	Kornievsky vs. Smith Linden & Basso, LLP 2013-00635667	1. Motion for Summary Judgment and/or Adjudication (ROA 2290)- Davies DEF [MOOT BASED ON NOS AND NOTICE OF WITHDRAWAL] 2. Motion for Summary Judgment and/or Adjudication (ROA 2247)- Basso DEF 3. Trial Readiness Conference Defendants Smith, Linden, & Basso LLP; Allen L. Basso; and Allen A. Basso's (collectively, the "Basso Defendants") motion for summary judgment is DENIED. The Court does so for the same reasons as stated in the Court's ruling on the Basso Defendants' substantially similar motion in the related case <i>Barrons v. Smith Linden & Basso, LLP</i>, Case No. 2013-00648240. Accordingly, the Court incorporates that ruling by reference here. The Court rules as follows on Plaintiffs' Evidentiary Objections (ROA #2342): • Basso Declaration (ROA #2245): ○ Objections #2-9 are OVERRULED. The Court also notes that Plaintiffs submitted these same pages as part of Plaintiffs' more complete versions of the exhibits. ○ Objections #10, 12-33 are SUSTAINED to the extent the declaration seeks to use testimony to prove the contents of a writing. (Evid. Code, § 1523, subd. (a).) As with the Basso Defendants' moving papers in the related <i>Barrons</i> case, the Basso Defendants' moving papers here repeatedly and incorrectly contend that "Private Placement Memorandums of each of the investments in this case . . . contain . . . the exact same disclosure language found dispositive in <i>Stella [v. Asset Management Consultants, Inc. (2017) 8 Cal.App.5th 181]</i>," describing the two as "identical." (ROA #2239, Mot. P&A at p. 3 [also describing the relevant language in this case as containing "identical language found as dispositive in . . . <i>WA Southwest [2, LLC v.</i>

		<i>First American</i> (2015) 240 Cal.App.4th 148]”]; see also <i>id.</i> at pp. 4, 11-12, 17-18, 20.) Also as with the Basso Defendants’ moving papers in <i>Barrons</i>, the Basso Defendants here misquote the Private Placement Memoranda (“PPMs”) of the relevant investments as including the “negotiated to include” language that was critical to the <i>Stella</i> court’s holding (<i>id.</i> at p. 12; see also ROA #2237, SSUMF, ¶ 35), even though such language does not actually appear in the PPMs here (ROA #2046, Exh. 3 at p. 19 of PDF, Exh. 3A at p. 4 of PDF, Exh. 3B at p. 3 of PDF, Exh. 3C at p. 4 of PDF, Exh. 3E at p. 4 of PDF, Exh. 3F at p. 4 of PDF, Exh. 3G at p. 3 of PDF; ROA #2160, Exh. 121 at p. 24 of PDF). When called out on this misquoting by Plaintiffs’ opposition papers, the Basso Defendants’ reply brief in this case at least acknowledges the misquoting. (ROA #2382, Reply, p. 4.) However, the Basso Defendants brushed it off by contending that “[t]hese minor citation corrections do not affect the substance of the Motion.” (<i>Id.</i>) But the differences in the investment materials’ language are not “minor.” For all the reasons the Court explained in its ruling in the related <i>Barrons</i> case, the Basso Defendants are wrong about the significance of the omissions of the “negotiated to include” language and other language in the instant TIC investment materials. The Court again ADMONISHES counsel for the Basso Defendants for misrepresenting to this Court that the relevant language considered in <i>Stella</i> (and <i>WA Southwest</i>) is the “same” as or “identical” to the relevant language in this case. Plaintiffs to give notice of this ruling.
115	McCready vs. Basso 2013-00632262	1.Motion for Summary Judgment and/or Adjudication as to PLTF William McCready (ROA 2142)- Davies DEF [MOOT BASED ON NOS AND NOTICE OF WITHDRAWAL] 2.Motion for Summary Judgment and/or Adjudication as to PLTF Richard Johnston (ROA 2151)- Davies DEF [MOOT BASED ON NOS AND NOTICE OF WITHDRAWAL] 3. Motion for Summary Judgment and/or Adjudication (ROA 2097)- Basso DEF 4. Trial Readiness Conference Defendants Smith, Linden, & Basso LLP; Allen L. Basso; and Allen A. Basso’s (collectively, the “Basso Defendants”) motion for summary judgment is DENIED. The Court does so for the same reasons as stated in the Court’s ruling on the Basso Defendants’ substantially similar motion in the related case <i>Barrons</i>